

Ramdayal v. State of U.P.

Allahabad High Court · Division Bench · 22 November 2018 · Writ-C No. 38003 of 2018 · **Writ disposed; relegated to clause 6.5; recovery stayed 30 days**

HEADNOTE

A writ to quash an electricity recovery citation, where the grievance is correctness of the bill, is not entertained because Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy. If the consumer applies to the appropriate authority within 15 days, that authority is to decide by speaking order within 15 days. Recovery remains stayed for 30 days or until that decision, whichever is earlier.

FACTUAL SUMMARY

Ramdayal, a consumer, filed a writ petition to quash a recovery citation dated 20 February 2018 issued by the Electricity Department. His grievance was the correctness of the bill on which the citation was founded. After hearing counsel for the petitioner and the Electricity Department, the Division Bench noted the statutory billing-objection remedy, declined to decide the bill on merits, and, while disposing of the petition, stayed the recovery for a limited time so that he could approach the designated authority.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness-statutory-remedy

HOLDING

A writ seeking to quash an electricity recovery citation, where the consumer disputes correctness of the bill, is not entertained because Clause 6.5 of the U.P. Electricity Supply Code, 2005 furnishes a statutory remedy. If the consumer approaches the appropriate authority within 15 days, the application may be considered and decided by speaking order within 15 days. Recovery remains stayed for 30 days or until the authority decides, whichever is earlier. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ to quash an electricity recovery citation, where the grievance is correctness of the bill, is not entertained because Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy.. ¶ 1